

		Finally, the proof of service itself does not comply with Code of Civil Procedure sections 1013(b)(1) and 2015.5.
9.	2026-1542680 Pi-Fang Yang, trustee of YPF Trust vs. Bingham	The unopposed motion by Plaintiff Pi-Fang Yang, as trustee of YPF Trust (“Plaintiff”), for preliminary or temporary injunction, is granted. Plaintiff’s request for judicial notice (ROA 46) is granted. (Evid. Code, § 452, subd. (c), (d); see also <i>River’s Side at Washington Square Homeowners Assn. v. Superior Court</i> (2023) 88 Cal.App.5th 1209, 1220, fn. 3 [trial court could take judicial notice of recorded CC&Rs].) Plaintiff moves for a preliminary injunction granting her and her vendors “unimpeded access” to the real property, commonly known as 26701 Quail Creek, #209, Laguna Hills, California 92656 (the “Property”), and temporarily excluding Defendants Jayson Bingham (aka Jayson Mancia) and Angie Abad (aka Angie Mancia) while Plaintiff makes repairs and to remediate mold in the Property. Code of Civil Procedure section 526, subdivision (a), sets forth the conditions upon which a preliminary injunction may be granted, including: “(1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually”; “(2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce irreparable injury to a party to the action; or “(4) When pecuniary compensation would not afford adequate relief.” To obtain a preliminary injunction, a plaintiff ordinarily is required to present evidence of the irreparable injury or interim harm that it will suffer if an injunction is not issued pending an adjudication of the merits. [Citation.]” (<i>White v. Davis</i> (2003) 30 Cal.4th 528, 554, emphasis in original.) The moving party bears the burden of showing all elements necessary to support the issuance of a preliminary injunction. (<i>O’Connell v. Superior Court</i> (2006) 141 Cal.App.4th 1452, 1481.) A landlord a statutory right to entry of a dwelling unit. (Civ. Code, § 1954.) Relevant, here, a landlord may enter the “dwelling unit” under the following circumstances: (1) In case of emergency. (2) To make necessary or agreed repairs, decorations, alterations or improvements, supply necessary or agreed services, or exhibit the dwelling unit to prospective or actual purchasers, mortgagees, tenants, workers, or contractors or to make an inspection pursuant to subdivision (f) of Section 1950.5. (4) Pursuant to court order. (Civ. Code, § 1954, subd. (a).)

In addition to statute, the subject lease agreement also provides the following with respect to “Temporary Relocation”:

Subject to local law, Tenant agrees, upon demand of Housing Provider, to temporarily vacate Premises for a reasonable period, to allow for fumigation (or other methods) to control wood destroying pests or organisms, *or other repairs to Premises*. Tenant agrees to comply with all instructions and requirements necessary to prepare Premises to accommodate pest control, fumigation or other work, including bagging or storage of food and medicine, and removal of perishables and valuables. Tenant shall only be entitled to a credit of Rent equal to the per diem Rent for the period of time Tenant is required to vacate Premises. (ROA 44 [Yang Decl. at ¶ 7, Exh. E—Lease at p. 5, ¶ 27].)

Plaintiff has submitted (uncontroverted) evidence that the Property has suffered water intrusion inside the wall, and that the “water damage has become extensive.” (Yang Decl. at ¶¶ 8, 16.) Defendants have not opposed the motion or disputed the accuracy of these representations. To the contrary, Defendants allege in their own cross-complaint that *they* informed Plaintiff that “remaining in the premises under those conditions would be unsafe due to electrical and health hazards.” (ROA 16 [Cross-Compl. at ¶ 19].) Defendants further allege that they reported “strong odors and breathing difficulties associated with mold exposure” to Plaintiff. (Cross-Compl. at ¶ 28.) In short, Defendants do not deny that the Property is currently “uninhabitable.” (See Cross-Compl. at ¶ 39.) Further, it appears Defendants are not currently residing at the Property. (See Cross-Compl. at ¶ 41.) As such, Plaintiff is likely to prevail on her claim for breach of contract (of the Lease Agreement) if Defendants refuse to comply with the “temporary relocation” provision.

The equities also weigh in favor of granting the requested relief, because Plaintiff may be in breach of the CC&Rs if necessary repairs are not made. (ROA 46 [CC&Rs at §§ 2.8, 12.1].) Conversely, the harm to Defendants is “minimal,” because it appears they are not currently residing at the Property; and, they have alleged that the Property is uninhabitable due to safety concerns (including electrical and mold issues).

Plaintiff’s counsel shall be prepared to provide the Court with the exact dates for the requested temporary injunction.

Plaintiff shall give notice of the ruling.